EDWIN ISAAC MANIKAI
versus
JEALOUSY MBIZVO MAWARIRE

HIGH COURT OF ZIMBABWE
MUREMBA J
HARARE; 4 June & 10 July 2026

Opposed chamber application

T Magwaliba for the applicant
Mrs L Chiperesa for the respondent

MUREMBA J:

Background

On 8 April 2026, the applicant filed an urgent chamber application seeking an interim interdict under case number HCH 1677/26. The application arose from the publication of two articles on 31 March and 2 April 2026 by the respondent on his X (formerly Twitter) page, which the applicant alleged were defamatory and damaging to his reputation. One of the articles was titled *"Money and How Fuzwayo's Application Crumbled."* The article narrated the collapse of Fuzwayo's Constitutional Court application under CCZ 10/26, which involved a challenge to the Constitutional Amendment Bill No.3 (CAB3). The article alleged that Professor Jonathan Moyo was the principal architect of the litigation, with Fuzwayo and Ibhetshu being used merely as fronts to file the application. Professor Moyo was supposed to be paid for orchestrating the litigation in pursuit of undermining the Constitution of Zimbabwe, but things became chaotic and Fuzwayo eventually withdrew the case. Following this withdrawal, financier Tagwirei allegedly refused to pay what was owed to Professor Moyo. The articles further claimed that Moyo had initially received part payment in cash, described as a large sum of money, which was personally delivered to him by an individual referred to only as "Manikai."

The applicant averred that the words implicating "Manikai" were understood by readers to mean him, and that the publications suggested he was part of a plan to circumvent and undermine the Constitution of Zimbabwe. He contended that the words were wrongful, defamatory, and without factual basis. The applicant further stated that when the articles were

brought to his attention by some people, he engaged with the respondent, who refused to remove the publications from his X page. This refusal prompted the applicant to file the urgent chamber application. The applicant averred that the continued publication of these articles posed an immediate and irreparable harm to his dignity and standing, warranting urgent judicial intervention. The relief sought was an interim order compelling the respondent to remove the impugned articles from his X page and any other social media pages pending the filing of a claim for damages by the applicant within 30 days of its grant. The applicant averred that the urgency stemmed from the ongoing harm caused by the continued publications, which he claimed could not be adequately remedied by damages at a later stage.

On 9 April 2026, I was allocated the urgent chamber application. After considering the papers and without setting down the matter for hearing, I struck off the matter from the roll of urgent applications. The order that I gave was couched as follows.

> **"IT IS ORDERED THAT**:
>
> 1. The matter is struck off the roll for lack of urgency -:
>
> (i) The article does not identify the applicant personally, and since 'Manikai' is not unique to the applicant, there is no basis for inferring that the reference is to him.
>
> (ii) The interim relief sought is incompetent because it is not anchored on a final relief to be pursued on the return day, but is instead wrongly premised on a summons action to be filed within 30 days of its grant."

Dissatisfied with the order, the applicant filed the present chamber application on 14 April 2026, seeking leave to appeal to the Supreme Court. He stated that the application was being made in terms of section 43(2)(d)(ii) of the High Court Act [*Chapter 7:06*], as read with rule 94 of the High Court Rules, 2021. The basis advanced is that the order I issued constitutes an interlocutory judgment, and therefore leave to appeal must first be granted before the appeal can be lodged in the Supreme Court.

It appears, however, that the applicant intended to rely on section 43(2)(d) of the High Court Act rather than section 43(2)(d)(ii), as the latter provision is not relevant to the present application. Section 43(2)(d) which governs appeals from interlocutory orders, provides as follows:

> S 43(2)(d) **Right of appeal from High Court in civil cases**
>
> "No appeal shall lie from an interlocutory order or interlocutory judgment made or given by a judge of the High Court, without the leave of that judge or, if that has been refused, without the leave of a judge of the Supreme Court, except in the following cases-
>
> (i) where the liberty of the subject or the custody of minors is concerned;
> (ii) where an interdict is granted or refused;

(iii) in the case of an order on a special case stated under any law relating to arbitration."

Points *in limine*

In response to the chamber application, the respondent raised certain points *in limine* which I will address *seriatim*. Before doing so, however, I must note that at the hearing Mrs *Chiperesa* argued that the matter under HCH 1677/26 was not urgent and that I had correctly struck it off the roll for lack of urgency. She sought to advance this argument of lack of urgency as a point *in limine* in the present application for leave to appeal and insisted upon it, despite my inquiry as to how the issue of urgency in HCH 1677/26 could properly be raised as a preliminary point in the current proceedings. It was only after Mr *Magwaliba*, for the applicant, objected on the same basis, that the issue of urgency could not constitute a point *in limine* in this application which is ordinary, that Mrs *Chiperesa* eventually abandoned the point *in limine*. I will therefore not determine that issue, as it was ultimately withdrawn, albeit belatedly.

I must also point out that in the opposing affidavit the respondent raised two further points *in limine*, namely that the present application is incompetent by reason of the absence of the judgment sought to be appealed against, and that the application constitutes an abuse of court process. However, at the hearing Mrs *Chiperesa* did not pursue these points *in limine*. I will therefore deem them to have been abandoned and will not determine them.

(i) No Right of Appeal Exists

The respondent averred that there is no right of appeal against an order striking off a matter for want of urgency. In support of this point *in limine* the respondent made the following averments. Rule 60(19) of the High Court Rules provides that where an application has been struck off the roll for lack of urgency, it shall automatically be transferred to the roll of ordinary court applications. In such circumstances, it is not necessary for the applicant to file a fresh application. In the present matter, the urgent chamber application was struck off the roll on the basis that it was not urgent. It was not dismissed. By operation of law, the matter now stands enrolled as an ordinary court application before this court. The existence of Rule 60(19) therefore makes it clear that there is no right of appeal against an order striking off a matter for want of urgency. Accordingly, the present application for leave to appeal is incompetent. It ought to be dismissed with costs on the higher scale of legal practitioner and client. Mrs *Chiperesa*, appearing for the respondent, submitted that the applicant had used the

wrong forum. She argued that since the matter now stands enrolled on the ordinary roll, it ought to have been pursued there rather than seeking leave to appeal.

In response to the point *in limine*, the applicant contended that a right of appeal does indeed exist in the present circumstances. He argued that the respondent had misconstrued the nature of the application in raising the objection. The applicant relied on section 43(2)(d) of the High Court Act, which governs appeals against interlocutory orders. The provision makes it clear that no appeal lies against such orders unless leave is granted either by the court that made the interlocutory order or, failing that, by a judge of the Supreme Court. It is on this basis that the applicant is seeking leave to appeal.

The applicant's counsel submitted that an appellant has an absolute right to appeal and test the correctness of a lower court's decision before being called upon to satisfy the judgment appealed against, citing *Old Mutual Life Assurance Company (Pvt) Ltd* v *Makgatho* HH 39-07. He emphasized that the right of appeal extends even to interlocutory orders which, though interlocutory in form, are final in effect. In such cases, leave of the High Court or Supreme Court is required, which is precisely why the present application was made.

The applicant's counsel also argued that the order in question, although appearing interlocutory, was in substance final and therefore appealable. He submitted that its effect was to dispose of some or all of the issues between the parties. He relied on *Blue Ranges Estate (Pvt) Ltd v Muduvuri & Anor 2009 (1) ZLR 368*, to argue that, in determining whether leave to appeal is necessary or whether an order is appealable at all, one must look at the nature and effect of the order, rather than its form. He submitted that an order is final and definitive if it has the effect of a final determination on the issues between the parties in respect of which relief is sought. On that basis, he contended that the order granted in HCH 1677/26, though appearing interlocutory, was in substance final and therefore appealable.

Additionally, the applicant contended that the order under HCH 1677/26 is appealable because it did not merely pronounce on urgency. It went further to make a factual finding that the articles complained of did not identify him. He contended that such a finding cannot be revisited by a court of parallel jurisdiction, and can only be challenged on appeal. He relied on the case of *Hickey* v *DMC Holdings (Private) Limited & 3 Others* SC 17/14, where the Supreme Court held that once a matter is found not urgent, the proper course is simply to remove it from the roll. The applicant's counsel submitted that in HCH 1677/26, however, the court went beyond urgency and pronounced on the merits.

The applicant's counsel drew further support from *Madza & Ors* v *Reformed Church in Zimbabwe Daisyfield Trust & Ors* SC 71/14, where the Supreme Court held that dismissing a matter on the basis of both lack of urgency and lack of *locus standi* amounted to a determination on the merits, which barred the applicant from placing the matter on the ordinary roll for determination. He submitted that the matter in HCH 1677/26 is analogous, save that instead of *locus standi*, I made findings of fact going to the merits, such that only an appeal is the correct remedy available to the applicant. On this basis, the applicant's counsel concluded that the order granted in this matter is appealable, just as the order in *Madza* was able to carry an appeal. He therefore maintained that the point *in limine* raised by the respondent has no merit and ought to be dismissed.

It is necessary to point out that section 43(2)(d) of the High Court Act sets out an important limitation on the right of appeal in civil cases. It provides that no appeal shall lie from an interlocutory order or interlocutory judgment of a judge of the High Court unless leave has first been obtained from that judge, or, if refused, from a judge of the Supreme Court. The provision, however, recognises specific exceptions where the consequences of an interlocutory ruling are so immediate and serious that an appeal lies as of right. These exceptions apply to interim decisions affecting the liberty of the subject, the custody of minors, the granting or refusal of an interdict, and orders made on a special case stated under any law relating to arbitration.

An interlocutory order is a temporary or provisional ruling made by a court during the course of proceedings, rather than a final judgment that disposes of the entire matter. Its purpose is to regulate procedure, preserve rights, or provide interim relief until the substantive dispute is finally determined. In *Chitsaka & Others v Heyns & Others* SC 46/23 MAKONI JA referred to several authorities that have defined what an interlocutory order is. From those authorities she then summarised the essential elements of an interlocutory order in paragraph 23 as follows.

i. "It is an order granted at an intermediate stage in the course of litigation of the dispute between the parties.

ii. It could relate to a preliminary or procedural question that would have arisen in the course of dealing with the main dispute.

iii. The final word still has to be spoken in the suit.

iv. It is an order pronounced upon matters incidental to the main dispute, preparatory to, or during the progress of litigation.

v. It can be final in form but interlocutory in nature, in that it does not have the effect of determining the cause of action between the parties."

The authorities that MAKONI JA referred to include *South Cape Corp* v *Engineering Management Services* 1977 (3) SA 534 (A) at 549G-550A; *Trust Merchant Bank Limited v Mako Properties (Pvt) Ltd t/a Musuna Safaris & Travel* SC 73–2002; *Blue Ranges Estates (Pvt) Ltd* v *Muduviri and Anor* 2009 (1) ZLR 368 (S), at p 376G-H and Herbstein and Van Winsen, "*Civil Practice of the High Courts of South Africa*" (5th ed, Juta) at p 1204.

Examples of interlocutory orders that come out of the above authorities include discovery orders directing a party to produce documents before trial, joinder orders adding or removing a party from proceedings, interim costs orders requiring one party to pay costs at a preliminary stage, adjournment orders postponing hearings, and security for costs orders requiring a party to deposit money to cover potential costs. Thus, interlocutory orders are distinguished from final orders. Final orders conclusively determine the substantive rights of the parties and bring litigation to an end, whereas interlocutory orders are interim measures designed to facilitate the progress of the case or preserve the *status quo* until the court reaches a final decision. The restriction on appeals from interlocutory orders reflects a policy choice to promote judicial efficiency, prevent tactical abuse, and ensure that appellate courts deal with matters of real substance rather than being burdened with fragmented or piecemeal appeals.

When a judge considers an urgent chamber application and strikes it off the roll of urgent matters, the order is procedural. It removes the matter from the roll of urgent cases but does not dispose of the merits of the dispute. The parties remain free to pursue the matter in the ordinary course, on the normal roll, or through other appropriate procedures. Such an order is therefore interlocutory because it is provisional and procedural rather than final. It does not resolve the substantive claim between the parties but simply determines that the matter does not warrant urgent treatment. The question is: is such an interlocutory order not appealable as the respondent averred in his point *in limine*?

I have taken note that, in raising the point *in limine,* the respondent relied solely on rule 60(19) of the High Court Rules which provides that when an application is struck off the roll for lack of urgency, it is automatically transferred to the roll of ordinary court applications. It is on this basis that the respondent argued that there is no right of appeal against the finding on urgency. My understanding is that the purpose of this rule is to avoid unnecessary duplication of proceedings by ensuring that a matter that has been found not urgent continues as an ordinary application without requiring the applicant to file afresh. In essence, the rule is procedural. It regulates the manner in which a case progresses after being

found not urgent. It cannot, however, be construed to mean that it bars an appeal to the Supreme Court if an applicant is dissatisfied with the judge's ruling that the matter is not urgent. As correctly submitted by the applicant's counsel, the right of appeal is governed by section 43(2)(d) of the High Court Act, which specifically addresses appeals from interlocutory orders. Rule 60(19) does not purport to limit or extinguish that statutory right. It merely directs the administrative handling of the case once urgency has been rejected. It does not say anything should the applicant wish to appeal against the decision on urgency.

In *Sitwell Gumbo* v *Porticullis Private Limited T/A Financial Clearing Bureau* SC 28/2014, the applicant filed an urgent chamber application in the High Court, but the judge declined to treat the matter as urgent. The applicant then sought leave to appeal to the Supreme Court against that decision. After the High Court dismissed the application for leave, the applicant filed a chamber application for leave to appeal in the Supreme Court. GWAUNZA JA, (as she then was), dismissed the application for the same reasons given by the High Court, noting that the applicant had failed to demonstrate the type of urgency that would have merited a hearing on an urgent basis. This case is a clear demonstration that there is a right to appeal against a ruling on urgency, provided the applicant seeks leave to file the appeal. If there was no right of appeal in such matters, both the High Court and the Supreme Court would have said so in that case. The fact that the two courts entertained the applications for leave confirms that the right of appeal exists, subject to the statutory requirement of obtaining leave. In addition, if there was no right of appeal, section 43(2)(d) of the High Court Act would have expressly excluded such rulings from appeal.

Therefore, the respondent's interpretation of rule 60(19), that it bars an appeal against a ruling on urgency, is not correct. While the rule ensures that the matter continues on the ordinary roll, it does not prevent an applicant from seeking leave to appeal if he or she believes that the finding on urgency was wrongly made. The two provisions operate in different spheres: rule 60(19) governs procedure, while section 43(2)(d) of the Act governs substantive rights of appeal. In short, rule 60(19) does not extinguish the applicant's right to challenge the ruling on urgency through appeal. It simply provides that the matter remains alive before the court as an ordinary application. Therefore, I do not find merit in the point *in limine* raised by the respondent.

However, before I conclude on this point *in limine*, I must address the applicant's reliance on *Blue Ranges Estate (Pvt) Ltd* v *Muduvuri & Anor 2009 (1) ZLR 368* in opposing the preliminary objection. That reliance stems from a misapprehension of the case. MALABA

DCJ (as he then was) did not hold that, one must look at the nature and effect of the order rather than its form, in determining whether an order is appealable, nor did he state that an order is appealable only if it is final and definitive in the sense of finally determining the issues between the parties. The issue in that case was not about determining which categories of orders are appealable. Rather, it concerned whether a spoliation order, though granted as interim relief, was appealable without the need to first obtain leave.

In that case the High Court had granted a spoliation order as interim relief. The respondent, dissatisfied, filed a notice of appeal in the Supreme Court without first seeking leave. The applicant then brought a chamber application in the Supreme Court to strike the appeal off the roll on the basis that leave was required to appeal against an interlocutory order and that the respondent had not obtained such leave. MALABA DCJ held that although the spoliation order was granted as interim relief, its effect was final and definitive: once executed, the order was discharged. On that basis, the respondent was entitled to appeal without leave.

The principle established in *Blue Ranges* is therefore that where an order, though styled interim, has the effect of finally determining the issue or cause of action between the parties, such that it is not subject to subsequent confirmation or discharge, the respondent may appeal directly to the Supreme Court without first obtaining leave. Therefore, the determination of the Supreme Court was that an order which is final and definitive in effect is appealable without leave, even if described as interim. Conversely, it is only interim orders that are not final and definitive in substance which require leave to appeal.

The point *in limine* in *casu* concerns whether there is a right of appeal against an order striking a matter off the roll for want of urgency. Accordingly, reliance on *Blue Ranges* is misplaced as that case dealt with the appealability of a spoliation order that was granted as an interim relief without first seeking leave to appeal. The two situations are not analogous, and *Blue Ranges* does not assist the applicant in resisting the objection. In terms of section 43(2)(d) of the High Court Act, any interlocutory order, save for those expressly exempted, is appealable regardless of its form, whether it is final and definitive in substance or not. The form of the order only becomes relevant in determining whether leave to appeal must first be sought before filing a notice of appeal in the Supreme Court.

Additionally, I am not persuaded by the applicant's argument that the order under HCH 1677/26 is appealable because it did not merely pronounce on urgency but went further to make a factual finding that the articles complained of did not identify him. The applicant

indicated that he was relying on *Hickey* v *DMC Holdings (Private) Limited & 3 Others SC 17/14*, where the Supreme Court held that once a matter is found not urgent, the proper course is to simply remove it from the roll.

I do not see the relevance of the *Hickey* case to the applicant's argument. The case concerned an appeal against the dismissal of an urgent chamber application by the High Court after finding firstly, that the matter was not urgent, and secondly, that the appellant had no *locus standi* to make the application. Dissatisfied, the applicant appealed. The Supreme Court held that having found the matter not to be urgent the court *a quo* should simply have issued an order that the matter be removed from the roll and should not have proceed to deal with the other issues raised in the application. In other words, the court *a quo* should not have proceeded to deal with the issue of *locus standi*.

In HCH 1677/26, I did precisely what the Supreme Court said should be done after finding that a matter is not urgent. I struck it off the roll and I did not deal with any further issues. The additional pronouncements were reasons incidental to assessing whether the matter qualified for urgent treatment. My order was confined solely to urgency and did not dispose of the merits. The applicant remains free to pursue his matter on the ordinary roll. Accordingly, I find the applicant's reliance on the *Hickey* case in opposing the respondent's point *in limine* to be misplaced, as HCH 1677/26 involved only a procedural ruling on urgency and did not dispose of the merits. *Hickey* is not analogous to HCH 1677/26. In any event, an interlocutory order determining the issue of urgency is appealable, irrespective of whether it is accompanied by any further pronouncements. S 43(2)(d) of the High Court Act makes no distinction between the two scenarios.

The applicant's further reliance on *Madza & Ors* v *The Reformed Church in Zimbabwe Daisyfield Trust & Ors SC 71/14* in arguing the present point *in limine*, on the basis that HCH 1677/26 is analogous to *Madza*, is also misplaced. In *Madza*, the Supreme Court was dealing with a situation where the High Court had dismissed an urgent chamber application both on the ground of lack of urgency and on *locus standi*. The Supreme Court held that once a matter is found not urgent, the proper course is to remove it from the roll of urgent matters rather than dismiss it. It further held that it is contradictory to dismiss a matter on the twin bases of lack of urgency and lack of *locus standi*, because the latter ground amounts to a determination on the merits. In that case the dismissal of the matter barred the applicant from placing the matter on the ordinary roll for determination.

In HCH 1677/26, however, my order was confined solely to urgency. It did not dismiss the applicant's case, as was the situation in *Madza*, but simply struck it off the urgent roll, leaving it to be heard on the ordinary roll. In fact, I did precisely what the Supreme Court instructed in *Madza*: I struck the matter off the urgent roll rather than dismissing it when I concluded that the matter was not urgent. Additional pronouncements in the order were reasons underpinning the conclusion that the matter was not urgent. They were not divorced from the issue of urgency as the issue of *locus standi* was divorced from the issue of urgency in the *Madza* case. The additional pronouncements in HCH 1677/26 did not amount to a determination of the substantive cause of action. Unlike *locus standi*, which directly affects the merits of a claim, additional pronouncements were made only in the context of urgency, not as a final pronouncement on defamation as the applicant suggested in the present application.

Accordingly, the analogy drawn by the applicant is erroneous. The order under HCH 1677/26 did not dispose of the merits of the dispute, nor did it bar the applicant from pursuing his case on the ordinary roll. His reliance on *Madza* therefore does not assist him in resisting the point *in limine*. In *Madza*, dismissal of the application disabled the applicant from proceeding on the ordinary roll, leaving appeal as the only remedy. By contrast, in HCH 1677/26 the application was not dismissed but struck off, thereby enabling the applicant to pursue his matter on the ordinary roll without the need for an appeal. The final word between the parties with regards to the application for an interdict has still to be spoken.

It is therefore in light of section 43(2)(d) of the High Court Act and the case of *Sitwell Gumbo* v *Porticullis Private Limited T/A Financial Clearing Bureau*, and not on the basis of the authorities cited by the applicant, that I find there exists a right of appeal against an order striking a matter off the roll for lack of urgency. Accordingly, the point *in limine* is dismissed.

(ii) The Urgent Chamber Application Under HCH1677/26 was Defective

The respondent's counsel submitted that the urgent chamber application under HCH 1677/26 was defective in that the interim relief sought was incompetent, being identical to the final relief claimed. Citing the case of *Kuvarega* -v- *Registrar General and Another* 1998 (1) ZLR 188 (H) at 193 A – B she argued that I was correct in refusing to entertain the matter on an urgent basis. Counsel further contended that no appeal lies where no proper application has been placed before the court. In her view, a defective application must be struck off the roll, as indeed occurred in HCH 1677/26.

In reply, Mr *Magwaliba*, for the applicant, argued that the respondent's counsel was conflating the earlier matter under HCH 1677/26 with the present application. He submitted that the point *in limine* does not properly arise in the present application for leave to appeal, as the issue was already determined in HCH 1677/26 when I ruled that the matter was not urgent. Whether that determination was correct or not is now a question for the Supreme Court on appeal. Mr *Magwaliba* further contended that the respondent's counsel was attempting to justify the order of this court in circumstances where such justification was neither appropriate nor relevant at this stage. He also argued that the *Kuvarega* case, upon which Mrs *Chiperesa* sought to rely, is inapplicable to the present proceedings and could only have relevance in the earlier matter, HCH 1677/26.

It is my considered view that the issue of the urgent chamber application in HCH 1677/26 being defective on the basis of incompetent interim relief sought is not one that can properly arise as a point *in limine* in the present application. The issue was already determined in HCH 1677/26 when I ruled that the matter was not urgent. As correctly submitted by Mr *Magwaliba*, whether that determination was right or wrong is now a matter for the Supreme Court to decide on appeal, should the matter proceed that far. In the present application, the issue can at most be raised in the context of the merits, where the respondent may argue that the applicant has no prospects of success on appeal since he was seeking an incompetent relief.

In the result, I find no merit in the point *in limine* and accordingly dismiss it.

The Merits

The applicant contended that for an application of this nature to succeed, he must demonstrate that the intended appeal has reasonable prospects of success.

The applicant's counsel submitted the following. The test for obtaining leave to appeal is whether there is a reasonable prospect that another court might reach a different conclusion from that of the court *a quo.* This standard was articulated in *Van Heerden* v *Cronwright & Others* 1985 (2) SA 342, where the court emphasized that the applicant must show that the appeal is not hopeless but has a realistic chance of success. The test was also expressed in more generous terms in *Whaley and Others (Law Society of Zimbabwe Intervening)* v *Cone Textiles* 1989 (3) SA 574 (Z), where the court, citing *Re Securities Insurance Co.* (1894) 2 CH 410 (CA*)*, noted that "it does not require much to obtain leave." If an applicant can make out even a *prima facie* case demonstrating why leave should be

granted, then leave will ordinarily be allowed. In essence, the threshold is not high. The applicant need only show that the appeal raises arguable issues and is not frivolous, thereby warranting consideration by the appellate court.

Basing on the three grounds of appeal he raised in his draft notice of appeal, the applicant averred that his intended appeal has reasonable prospects of success on appeal. I will consider the three grounds in order to determine whether the intended appeal indeed has prospects of success.

The First Ground of Appeal

The High Court grossly erred in striking the application off the roll of urgent matters without a hearing.

The applicant averred that the rules of this court do not admit an interpretation where an urgent chamber application can be struck off the roll without a hearing. The finding that the matter was not urgent, made in the absence of a hearing, was said to contravene r60(18) as read with subrules (12) and (6) of the High Court Rules, 2021. The applicant's counsel submitted that the established practice is that, where the court is not persuaded of urgency, it raises a query and the applicant may then request audience to address the issue. Only after such a hearing may the court strike the matter off the roll. This practice, he argued, is consistent with Rule 60(18), which provides that:

> "Where upon hearing an application which is supported by a certificate from a legal practitioner in terms of subrule (6) the Judge is of the view that the application is not urgent within the meaning of this rule; the Judge shall strike the application from the roll of urgent applications."

Mr *Magwaliba* therefore contended that in light of this rule, while the court has the power to strike off urgent chamber applications, the exercise of that power must follow a hearing on urgency.

I note that the respondent did not address this ground of appeal either in the opposing affidavit, in the heads of argument, or in submissions during the hearing. Mrs *Chiperesa* confined herself to asserting that I was correct in finding that the matter was not urgent. Beyond that, she merely made a sweeping statement that this court was right to exercise its discretion on urgency and to strike the matter off the roll. She further submitted that she could not see how the Supreme Court could be persuaded that this court erred in striking off the matter for lack of urgency. In doing so, Mrs *Chiperesa* failed to engage with the real issue, which is whether the finding that the matter was not urgent, made in the absence of a hearing,

contravened rule 60(18) as read with subrules (12) and (6) of the High Court Rules, 2021, as alleged by the applicant. This is the issue that ought to have exercised her mind. She should have analysed the rules cited by the applicant and submitted whether or not they were contravened. Instead, she digressed into a general justification of the order without addressing the specific ground of appeal.

I am therefore left with no choice but to analyse the relevant rules without any input from the respondent, which is most disappointing. I would have benefited from the respondent's counsel's engagement with the issue.

I must begin by acknowledging that I have never understood the rules of this court to mean that in every urgent chamber application filed, it is mandatory that a hearing be held before a judge can determine whether the matter is urgent. Nor have I understood the rules to require that, if the judge is not persuaded on urgency, he or she must first raise a query so that the applicant may request audience to address the issue. I do not believe that a hearing is mandatory in every case, especially given the volume of urgent chamber applications judges deal with. Be that as it may, I will now turn to the rules themselves and analyse them thoroughly to determine whether my approach has been mistaken. If I have been wrong, then I am not alone, for many other judges, if not all, may have been proceeding in the same manner.

I will analyse the rules in an ascending manner starting from Rule 60(6) through to Rule 60(18). Rule 60(6) comes earlier in the sequence and is the starting point in the procedure for urgent chamber applications. It sets out the requirement for a certificate of urgency from a legal practitioner. The subsequent rules build upon that framework, addressing how urgent applications are to be filed, processed, and ultimately determined. Rule 60(18) is the culminating provision in that sequence, dealing specifically with the judge's power to strike an application off the urgent roll if, upon hearing, it is found not to be urgent. So, analysing the rules in order from Rule 60(6) up to Rule 60(18) is both logical and consistent with the structure of the High Court Rules, 2021. It allows me to trace the procedural steps progressively, showing how the rules interconnect and lead to the final provision.

Rule 60(6) provides that once a chamber application is accompanied by a certificate of urgency, the registrar must immediately place the matter before the duty judge, who shall *consider the papers forthwith*. This provision establishes that the judge's primary duty is to scrutinize the papers promptly. It is therefore my considered view that this rule empowers the

judge to determine urgency on the strength of the papers alone. The rule does not mandate that a hearing must automatically follow. Rather, it leaves the judge with discretion to decide urgency based on the papers. To insist that every urgent chamber application must be heard orally before being struck off would undermine the efficiency that rule 60(6) is designed to achieve and would impose an unnecessary burden on the court. Therefore, I am not persuaded that there was any violation of rule 60(6) when I determined the matter not urgent without hearing the parties. My decision to strike the matter off the urgent roll without hearing parties was consistent with the discretion afforded by the rule. In practice, many urgent chamber applications that are not urgent are disposed of by judges on the papers, because urgency, or the lack thereof, is often apparent from the certificate of urgency and affidavits.

Rule 60(8) reinforces the discretion in rule 60(6) by allowing the judge, if necessary, to call upon the applicant, the deponent of any affidavit, or either party's legal practitioner to appear and provide further information or argument. This shows that a hearing is not a prerequisite in every case but is triggered only where the judge considers it necessary. In other words, the wording makes clear that such a hearing is optional, not mandatory, and is triggered only where the papers leave uncertainty or require elaboration. It is my view that further information that the judge may require may relate to any issue including the issue of urgency.

Rule 60(9) further clarifies that if the judge is satisfied, upon considering the papers, that a *prima facie* case has been established, he or she shall grant a provisional order either in the terms of the draft filed or as varied. This rule amplifies the point that in urgent chamber applications judges are empowered not only to determine urgency but also to grant provisional relief purely on the basis of the papers, without convening hearings. If judges strictly applied this rule, they would actually dispose of urgent chamber applications on the papers alone, without conducting oral hearings. The rule perfectly allows it. However, in practice judges hardly resort to this rule. They customarily convene hearings before granting interim relief in all cases where they would have formulated the opinion that a matter is urgent. This prevailing judicial habit is a function of established practice than what the rules command. There is nothing wrong with this approach though since rule 60 (8) allows judges to hear the parties in the exercise of their discretion. However, this rule (60(9) reinforces the point that a hearing is not mandatory in every urgent chamber application.

Taken together, Rules 60(6), 60(8), and 60(9) establish a coherent framework: the judge must consider the papers immediately; may, in his or her discretion, call for further

information or argument; and may, if satisfied that the application has merit, grant a provisional order on the papers alone. A hearing is therefore not a prerequisite in every urgent chamber application. It is clear that the rules are designed to ensure efficiency and responsiveness in urgent matters, while preserving judicial discretion to require oral clarification where necessary. If the rules empower a judge to grant a provisional order purely on consideration of the papers without hearing the parties in terms of rule 60(9), then by parity of reasoning the judge must also have the discretion to determine urgency on the same basis. It would be inconsistent to say that a judge can act decisively in granting relief without hearing parties in terms of rule 60(9), yet cannot decline urgency without hearing parties on the basis of rule 60(18). Accordingly, when a judge finds that a matter lacks urgency upon considering the papers, the proper course is to strike it off the roll of urgent matters, rather than dismiss it outright. This preserves the applicant's right to pursue the case in the ordinary course as provided for in rule 60(19), while ensuring that the urgent roll is reserved for truly pressing matters.

Rules 60(10) and 60(11) then regulate the conditions that maybe attached to the granting of the provisional orders and the form of such provisional orders. Rule 60(10) provides that before granting a provisional order, the judge may require the applicant to give security for any loss or damage that may be caused by the order, and may order such additional evidence or information as he or she considers fit. Rule 60(11) sets out the formal requirements of a provisional order, including its prescribed form, accompanying terms of final order, directions on service, and timelines for opposition.

The rule that follows is rule 60(12). My understanding of this rule is that it governs the post-provisional order stage. It begins by stating that,

> "Subrules (2) and (11) of Rule 59 shall apply with the necessary changes to the enrolment and hearing of a matter consequent upon the issue of a provisional order referred to in subrule (11)." (my underlining)

This opening clause makes it clear that the provision is concerned with what happens after a provisional order has already been granted. It governs the enrolment and hearing of the matter that follows from that provisional order. In other words, the rule regulates the procedure to be followed for the matter to be heard on the return date, when the court determines whether the provisional order should be confirmed or discharged. The proviso to the rule further adds that where a legal practitioner has certified a matter as urgent, the court or judge may direct that it be set down for hearing at any time, or may hear it at any time and place, with ordinary notice periods dispensed with. Clearly, this rule (rule 60(12)) and its

proviso have nothing to do with the initial determination of urgency in the urgent chamber application for a provisional order as the applicant averred. I therefore do not agree with Mr *Magwaliba* the applicant's counsel, that finding the matter not urgent without hearing the parties violated rule 60(12). There was no violation of this rule in any way when I determined the matter not urgent without hearing the parties. Considering that this rule governs the post-provisional order stage, there is no way it can be read together with rule 60 (8) and 60(18) in the determination of urgency in an urgent chamber application.

I finally turn to rule 60(18) which forms the basis of the applicant's contention that striking off the matter without a hearing contravened this rule as read with subrules (12) and (6). It reads:

> "Where upon hearing an application which is supported by a certificate from a legal practitioner in terms of subrule (6) the Judge is of the view that the application is not urgent within the meaning of this rule; the Judge shall strike the application from the roll of urgent applications." (my underlining)

The rule means that when a judge hears an urgent chamber application supported by a legal practitioner's certificate of urgency, and he or she finds or concludes that the application does not meet the threshold of urgency, the judge is required to strike the matter off the roll of urgent applications. In other words, the case will not be dismissed outright, nor will the merits be considered; it will simply be removed from the urgent roll and left to proceed, if at all, in the ordinary course. The purpose of the rule is to ensure that only genuinely urgent matters receive expedited treatment, while non-urgent matters follow the normal procedural path.

In light of the applicant's ground of appeal alleging that I grossly erred in striking the application off the urgent roll without a hearing, the critical question is whether the phrase *"Where upon hearing an application"* in Rule 60(18) requires that parties must always be heard orally before a matter can be struck off. In my considered view, it does not. The wording must be read in harmony with Rule 60(6), which empowers the judge to determine urgency on the papers alone, and Rule 60(8), which makes clear that calling parties to appear is discretionary. Rule 60(9) further confirms that judges may grant or refuse interim relief purely on the papers. Thus, the phrase in Rule 60(18) refers to situations where, in exercising discretion under Rule 60(8), the judge has chosen to hear the matter. If after such a hearing the judge finds no urgency, the matter must be struck off. The rule does not negate the discretion to decide urgency solely on the papers. In my view, the phrase "*Where upon*

hearing an application" may appropriately be substituted with "if upon hearing an application."

The rules therefore demonstrate that the consideration of urgency occurs in two distinct stages. Firstly, under Rule 60(6) when the judge assesses urgency on the papers alone, without convening a hearing. Secondly, under Rule 60(8) and Rule 60(18), in instances where the judge has elected to conduct a hearing. In practice, this is exactly how urgent chamber applications are managed. The first stage is a paper-based determination of urgency. At this stage, if the judge concludes that the matter is not urgent, it is struck off the urgent roll immediately, without inviting the parties. If, however, the judge finds urgency established on the papers, the matter is then set down for hearing and the parties are invited to appear. This is the second stage. If at that hearing urgency is not established, the matter must be struck off the roll in terms of rule 60(18). My decision in case HCH 1677/26 to strike the matter off the urgent roll without setting it down for hearing was consistent with this framework, as I was still operating at the first stage, considering urgency on the papers alone.

The Supreme Court fortified this interpretation of the rules and the practice of the High Court in *Edward Tawanda Madza & Others* v *The Reformed Church in Zimbabwe Daisyfield Trust* SC 71/14. In that case, ZIYAMBI JA (as she then was) explained that the central question for a judge faced with an urgent application is whether to accord it priority by treating it as urgent. This requires the exercise of judicial discretion, weighing factors for and against urgency. The Court made clear that if, on perusal of the papers, the judge concludes that the matter is urgent enough to merit an urgent hearing, then a hearing is convened and appropriate orders may follow. Conversely, if the judge concludes from the papers that the matter is not urgent, the application must be refused and struck off the urgent roll, leaving the applicant free to pursue it on the ordinary roll. The judge stated:

> "The main question faced by a Judge presented with an 'urgent application' is to decide whether or not to give priority to the application by dealing with it on an urgent basis. In arriving at a decision on this issue, he or she is called upon to exercise discretion. Such discretion must be exercised judicially taking into account the factors urged in favour of, and against, an urgent hearing.
>
> If, on perusal of the papers, the Judge comes to the conclusion that the matter is urgent enough to merit an urgent hearing, then he or she conducts a hearing and gives such order as he thinks fit. <u>But if the conclusion is reached, however, that the matter is not urgent, he or she must refuse to hear the application and remove it from the roll</u>, in which event the applicant has the option of enrolling his matter for hearing on the ordinary roll of court applications." (my underlining)
>
> See also *Chidawu & Ors v Sha & Ors* SC 12/13.

It must be noted that when these cases were decided in 2013 and 2014, the High Court Rules, 1971 were still operational. Rule 244 thereof provided as follows:

> "Where a chamber application is accompanied by a certificate from a legal practitioner in terms of paragraph (b) of subrule (2) of rule 242 to the effect that the matter is urgent, giving reasons for its urgency, the Registrar shall immediately submit it to a judge, who shall consider the papers forthwith."

This is exactly how rule 60(6) of the current High Court Rules of 2021 is worded. The explanations that were made by the Supreme Court both in the *Madza* and *Chidawu* cases apply with equal force in the present matter. The pronouncements made confirm the two-stage framework already evident in Rule 60(6), Rule 60(8), and Rule 60(18): urgency may be determined on the papers alone at the first stage, and only if urgency is found does the matter proceed to the second stage — a hearing. At that hearing, if urgency is not established, the matter is struck off. The Supreme Court's guidance therefore reinforces that hearings are discretionary, not automatic, and that striking off on the papers is entirely consistent with the rules.

This interpretation of the rules avoids the illogical and impractical burden of requiring oral hearings in every urgent chamber application, especially given the high volume of work and the large number of urgent chamber applications that the High Court must process. To insist on oral hearings in all cases would undermine efficiency, clog the urgent roll, and divert judicial resources from matters that genuinely require immediate attention. The rules are designed to strike a balance: urgency can be determined on the papers alone under Rule 60(6), with hearings convened only if the judge deems it necessary under Rule 60(8). Rule 60(18) then governs the outcome where a hearing has in fact been held. This framework ensures that judges retain discretion to manage their matters efficiently while safeguarding fairness. Otherwise, if every urgent application required oral argument regardless of merit, judges would be overwhelmed and the urgent roll could be abused by litigants seeking to fast-track non-urgent matters. The discretion to strike off on the papers is therefore both logical and essential to protect the integrity of the urgent process.

However, before I conclude on the present ground of appeal, it is important to state that when an urgent chamber application is struck off the roll for lack of urgency after a judge has considered the papers, the applicant is not barred from subsequently seeking audience with that judge to argue the issue of urgency, if he or she genuinely believes he or she can persuade the judge otherwise. This procedure was affirmed in *The Church of the Province of*

Central Africa v *The Diocesan Trustees for the Diocese of Harare* HH 105/10, where MAVHANGIRA J (as she then was) clarified that a finding of lack of urgency made purely on the papers is only a *prima facie* view, not a final determination, and does not render the judge *functus officio*. If audience is requested, the judge retains the discretion to set the matter down and invite the parties for a hearing, as indeed occurred in that case. What had happened is that the judge had received an urgent chamber application, perused the papers on the same day and endorsed on it that the matter was not urgent. The applicant then sought audience with the judge and the respondent sought to argue that the judge could not hear the matter because she was now *functus officio*.

In the present matter, after I struck the application off the urgent roll for lack of urgency, the applicant could have sought audience if he so wished and was dissatisfied with my brief reasons for finding that the matter was not urgent.

In view of the foregoing, I am not satisfied that there are prospects of success in respect of the present ground of appeal that I should have conducted a hearing before striking off the matter HCH 1677/26 from the urgent roll for lack of urgency.

The Second Ground of Appeal

The High Court erred in concluding that the appellant had not been defamed in circumstances where the matter had not been heard on the merits.

The applicant averred that in HCH 1677/26 I concluded that he was not defamed when I had not heard the matter on the merits. He contended that the law recognises defamatory conduct even in instances where the defamed is not named, but if a reasonable reader can conclude that the article is referencing that person, then the fact that he or she was not specifically so named does not matter. In the articles complained of, the respondent referred to "Manikai," and pursuant to those articles, the applicant averred in the urgent chamber application under HCH 1677/26 that he had received inquiries from members of the profession (legal) as well as other commercial leaders, which demonstrates that the reasonable reader had concluded that the articles were referencing him. The applicant averred that on that basis, he had made a *prima facie* case for an interim interdict in the urgent chamber application. The applicant further contended that the finding that the articles did not refer to the applicant could not have been made in chambers, in the absence of a hearing, as it is a finding of fact which effectively disposed of the dispute in substance. The applicant also averred that the finding that he had not been defamed was also made in the absence of a

hearing or argument. The final averment was that the court made a finding which had not been prayed for.

In reply, the respondent did not meaningfully engage with this ground of appeal. He merely stated that it was true the applicant was not named in the articles complained of, and that the judge was correct in finding the matter not urgent without hearing the parties. At the hearing, Mrs. *Chiperesa,* appearing for the respondent, did not advance the argument either. She focused solely on the point that the order sought by the applicant in HCH 1677/26 was defective and failed to address the ground of appeal as articulated by the applicant.

Mr. *Magwaliba* submitted that identification in defamation does not require explicit naming; it is sufficient if a reasonable reader would understand the publication to refer to the plaintiff. He relied on *Mohadi* v *The Standard & Ors HH 16-13*, which affirmed that the plaintiff must show that the material referred to him, and on authorities such as *Ndewere* v *Zimbabwe Newspapers* (1980) Ltd &Anor 2001 (2) ZLR 508, *Goodall v Hoogendoorn Ltd 1926 AD 11*, and *Young v Kemsley 1940 AD 258*, all of which held that the test is objective: whether the ordinary reasonable person would understand the words to apply to the plaintiff. He further cited *Manyange* v *Mpofu & Zimbabwe Newspapers HH 162-11*, which held that a plaintiff need only prove that the injurious statement referred to him, not that he was named, and Professor Feltoe's *Guide to Delict*, which notes that even statements about a class or group may give rise to a claim if reasonable people would understand them to refer to an individual. Applying these principles, counsel argued that the applicant only needed to show he is a "Manikai." The fact that 35 family members share the surname does not defeat the claim, since the article alleged that one "Manikai" couriered money to Kenya. To deny all of them the right to sue merely because they were not named individually, he contended, would be absurd.

When I perused the papers in HCH 1677/26, my intention was to decide if the matter was urgent. I took note that in the published articles complained of, the applicant's full name, *Edwin Isaac Manikai* was not specifically mentioned. In the entire articles, there were only two sentences that referred to the name "Manikai," The first sentence was in Annexure A1 in the paragraph which reads:

> "The immediate result of Fuzwayo's withdrawal was refusal by the application's funder, Tagwirei, to pay what was owed Prof Moyo. Moyo had initially received part payment in cash, a huge sum of money that was personally delivered to him by Manikai."(my underlining)

The second sentence was in Annexure A2. The sentence is found in the second paragraph of the following two paragraphs.

> "These days, @ProfJNMoyo has tapered on his support for #CAB3. It is because he hasn't received the balance of the amount he charged Tagwirei and ZZ to craft BBI and push through #CAB3.
>
> The initial payment was shipped to Kenya by Manikai but since then, the balance hasn't been paid. That is what is frustrating @ProfJNMoyo." (my underlining)

Beyond these two references, the articles did not provide any clue as to who this 'Manikai' might be. It was not even clear whether this name was a surname, first name or nickname. The articles simply said 'Manikai' and that was it. Because of this, I was not satisfied that the urgent chamber application for an interim interdict was urgent. I went on to strike the matter off the roll of urgent matters so that it could proceed under the ordinary roll. I will repeat the order I gave, which reads:

"IT IS ORDERED THAT:

1. The matter is struck off the roll for lack of urgency –
   (i) The article does not identify the applicant personally, and since 'Manikai' is not unique to the applicant, there is no basis for inferring that the reference is to him.
   (ii) The interim relief sought is incompetent because it is not anchored on a final relief to be pursued on the return day, but is instead wrongly premised on a summons action to be filed within 30 days of its grant."

Points (i) and (ii) in the order were reasons underpinning the conclusion that the matter was not urgent. The articles complained of referred only to "Manikai," yet the applicant is Edwin Isaac Manikai. Where the articles did not specifically mention the applicant's full name but instead mentioned a name which happens to be a surname of the applicant together with 35 relatives of his, I did not see any urgency in the matter. What further exercised my mind was: what if there were other people that were not known to the applicant who use this name as their surname or first name or nickname? With this, I found no justification for dropping everything to hear the matter urgently, particularly given the applicant's own acknowledgment in his founding affidavit that many members of his family use the name "Manikai."

For a case to qualify as urgent, the applicant must demonstrate immediate and irreparable harm that cannot be remedied in the ordinary course. In this instance, the vague reference to "Manikai" undermined the claim of urgency. I did not find the name (which could be a surname or a first name or a nickname of other people) alone sufficiently explicit

to pose a real risk of reputational damage to the applicant, whose full name is Edwin Isaac Manikai, that could not wait for the ordinary roll. My considered view was that the applicant could still pursue his claim for removal of the articles on the ordinary roll, as the threshold for urgent relief was not met. In other words, the mere use of the name "Manikai," without more identifiers, did not create the kind of imminent and irreparable harm that would compel urgent judicial intervention.

I find no merit in the applicant's present ground of appeal that I concluded that he was not defamed when I had not heard the matter on the merits. I readily acknowledge that the matter was not heard on the merits, and indeed that it was not heard at all. However, there is nowhere in the order where I stated that the applicant was not defamed. Saying *"the applicant was not defamed"* is a substantive conclusion about the merits of defamation. It is a determination of whether the applicant's reputation was harmed by the publication. My remarks were confined to the issue of urgency and not to the substantive merits of defamation. The order did not pronounce on whether defamation had occurred. It simply determined that the matter did not qualify to be heard on an urgent basis. However, that was not to say the applicant was not defamed.

I acknowledge the submission by Mr. *Magwaliba* that identification in defamation does not require explicit naming, and that the test is whether a reasonable reader would understand the words to refer to the plaintiff. That principle governs the merits of a defamation claim. However, in HCH 1677/26 my only consideration was the issue of the urgency of the urgent chamber application for an interim interdict. I did not go as far as determining whether the applicant was defamed. Whilst the applicant may very well succeed in his claim for damages against the respondent, for the purpose of the urgent chamber application that was placed before me, I was not satisfied that the application had met the threshold of urgency. The applicant's name, Edwin Isaac Manikai, not having been explicitly mentioned, I did not regard the application for an interdict as urgent. However, I did not dismiss the application but merely struck it off the roll so that it could proceed in the ordinary course. The applicant still had a chance to pursue his claim for removal of the articles by the respondent from his X page.

In the result, I am not satisfied that there are reasonable prospects of success on appeal based on the present ground of appeal as I made no pronouncement on the merits of defamation.

The Third Ground of Appeal

The High Court erred in failing to find that the interim interdict would have been automatically discharged if the Appellant had failed to file an action claim within 30 days of the Order.

The applicant contended that there are exceptions to the general rule that an application for an interim interdict must be predicated on a pending action, and that this case fell within such an exception. It was argued that the absence of a pending action at the time of filing the urgent chamber application was not fatal to it. Reliance was placed on *Heilbron* v *Blignaut 1931 WLD 167 at 169*, where the court held that in defamation matters it is permissible for an applicant to approach the court urgently to arrest the defamation and thereafter sue for damages. The principle established in that case is that a person who fears an imminent injury giving rise to a legal claim need not wait until the harm occurs before seeking relief; they may approach the court in advance to prevent the harm. However, because such relief is sought by way of motion proceedings (on affidavit), the facts must be clear and undisputed. Where there is a genuine dispute as to whether the conduct is actionable, that dispute cannot be resolved on motion. Applied to defamation, the court held that an interdict may only be granted if it is clear that the defendant has no defence. For instance, if the defendant swears under oath that he can prove truth and public benefit, the court cannot disregard that statement, since if true it would constitute a valid defence. The basis for granting an interdict is therefore that an actionable wrong and conduct without a legal defence, is about to be committed. If a possible defence exists, the matter must proceed to trial rather than being summarily determined on motion.

It was submitted on behalf of the applicant, that the absence of a pending action at the time of filing the urgent chamber application was not a defect. It was further argued that the only circumstance in which the court would have been justified in refusing the order sought was if the respondent had set out recognized defences to a defamation claim. Mr *Magwaliba* submitted that it is not an absolute rule that a provisional interdict must be issued only where substantive proceedings are already pending. He argued that, in HCH 1677/26, it was necessary to protect the interests of the applicant even before the institution of substantive defamation proceedings. He contended that this case represented a necessary exception to the general rule. Accordingly, it was submitted that the applicant's urgent chamber application was not fatally flawed by the absence of a pending action when it was filed.

In response to the application, the respondent averred that the provisional order sought by the applicant in HCH 1677/26 was defective because its terms were identical to those of the final order. This was the same argument advanced at the hearing by his legal practitioner, Mrs *Chiperesa*. She referred to *Kuvarega* v *Registrar General and Another* 1998 (1) ZLR 188 (H) at 193 A–B, where the court held that:

> *"*The practice of seeking interim relief which is exactly the same as the substantive relief sued for and which has the same effect defeats the whole object of interim protection. In effect, a litigant who seeks relief in this manner obtains final relief without proving his case. That is so because interim relief is normally granted on the mere showing of a prima facie case*."*

Unfortunately, this argument did not engage with the applicant's ground of appeal. It bore no relevance to the issue raised.

Apparently, the relief the applicant was seeking under HCH 1677/26 was couched as follows.

> "**TERMS OF FINAL ORDER SOUGHT**
>
> That you show cause to the Honourable Court why a final order should not be made in the following terms-
>
> **INTERIM RELIEF GRANTED**
>
> (a) Pending the filing and determination of a claim for damages by the applicant, such claim being filed within 30 days of this order, the respondent be and is hereby ordered to remove forthwith the articles with reference to the applicant on his twitter page and any other social media pages.
> (b) The respondent is interdicted and restrained from publishing any of the defamatory material contained in the articles.
> (c) Failure by the applicant to institute the claim referenced in paragraph (a) above shall result in the automatic discharge of the interim interdict on the last day of the 30 day period.
> (d) The respondent shall pay costs of suit on an attorney and client basis. The draft notice of appeal itself is couched as follows.
>
> SERVICE OF THE PROVISIONAL ORDER
>
> This provisional order shall be served on the respondents by the applicant's legal practitioners or by a person in the employ of the applicant's legal practitioners or by the Deputy Sheriff"

This ground of appeal has no prospects of success for the following reasons. To begin with, my order did not state that the absence of a pending action at the time of filing the urgent chamber application was fatal to the application. I did not strike the matter off the roll for being defective. I struck it off solely for lack of urgency. The point that the interim relief sought was not predicated on a final relief to be pursued on the return date, but instead on a summons to be filed within 30 days, was my second reason for concluding that the matter was not urgent.

It is a settled rule that when a litigant approaches the court on the basis of an urgent chamber application seeking an interim relief, provision must be made for the matter to be heard again on the return date. On that date, the parties return to court for the confirmation or discharge of the provisional order. The interim relief sought must therefore be anchored on a final relief or order to be granted on that day. Once a party seeks interim relief on an urgent basis, the hearing of the same matter on the return date is indispensable.

It is significant that in the draft order in HCH 1677/26, the applicant expressly wrote:

> "**TERMS OF FINAL ORDER SOUGHT:** That you show cause to the Honourable Court why a final order should not be made in the following terms—".

The inclusion of this part in the draft order demonstrates that the applicant was aware of the requirement to seek a final relief on the return date, although he then left the terms thereof blank. The absence of defined terms made it apparent that, once the interim order was obtained, the applicant would not return to this court for its confirmation or discharge. This point is reinforced by paragraph (a) of the interim relief, which stated:

> "Pending the filing and determination of a claim for damages by the applicant, such claim being filed within 30 days of this order, the respondent be and is hereby ordered to remove forthwith the articles with reference to the applicant on his twitter page and any other social media pages."

This paragraph of the interim relief expressly provided that the respondent was to remove the articles pending the filing and determination of a claim for damages by the applicant, such claim being filed within 30 days of this order. This wording demonstrates that the granting of the interim relief was conditional upon the applicant filing a substantive claim for damages within 30 days. In other words, the granting of the interim relief and its continuation depended on the institution of the damages claim by the applicant within 30 days. At the time of filing the application, the applicant therefore knew that he intended to file a claim for damages within 30 days of being granted the interim relief. The question is: why then did he make provision for the granting of a final relief which he then left blank in the draft order? What purpose did it serve when he knew he did not intend to come back to court to seek final relief on the return date in the same matter?

The contention under this ground of appeal is that I erred in failing to find that the interim interdict would have been automatically discharged if the appellant had not filed an action claim within 30 days of the grant of the interim order. As I explained earlier, when I stated that the interim relief sought was incompetent because it was not anchored on a final relief to be pursued on the return day, but is instead wrongly premised on a summons action

to be filed within 30 days of its grant, I gave this as my second reason for finding that the matter was not urgent. I did not venture into the issue of whether an interim interdict can be granted in the absence of a pending action, nor did I go as far as holding that it is an absolute rule that a provisional interdict must be issued only where substantive proceedings are already pending.

When I concluded that the matter was not urgent, my reasoning did not turn on the absence of a pending action at the time of filing the urgent chamber application. Rather, I had observed that the interim relief was not tied to a final relief to be granted on the return date but to a claim for damages which was going to be filed within 30 days of its grant. The approach bypassed the requirement of a return date in HCH 1677/26 and effectively turned the interim relief into a final relief in disguise under that case, although it was styled 'interim'.

Another observation I made was that the relief sought was not truly interim in substance. In paragraph (a) of the draft order, the applicant was requesting that the respondent be directed to remove the published articles pending the filing of a substantive claim for damages within 30 days. Such relief, if granted, would have been final in effect rather than interim. Once the articles were removed by the respondent from his X page, the issue concerning their publication would have been conclusively disposed of, leaving nothing to be determined on the return date. The *Blue Ranges* case *supra* is instructive on this point. Interim relief must preserve the *status quo* until the return date, not resolve the matter outright. In HCH 1677/26, there was no further stage at which the issue of the removal of the published articles could be ventilated once the so-called interim relief was granted, yet the applicant would have obtained a final interdict under the guise of interim relief.

The foregoing satisfied me that the so-called interim relief was in reality a final relief. The applicant had approached the court *via* the chamber book under the pretext of seeking interim relief, yet procedurally it is impermissible to seek final relief disguised as interim relief. This is why I concluded that the matter was not urgent. Since the applicant was seeking a final interdict, the proper procedure would have been for him to approach this court by way of an ordinary court application from the outset, rather than by way of an urgent chamber application under the guise of seeking an interim relief as he did. For these reasons, I was fortified in my view that the matter lacked urgency and struck it off the roll so that the applicant could properly proceed under the ordinary roll.

In light of the foregoing, I am not persuaded that there are any prospects of success on the basis of the present ground of appeal that I failed to find that the interim interdict would have been automatically discharged if the applicant had failed to file an action claim within 30 days of the Order.

The Applicant's Prayer in the Draft Notice of Appeal

The applicant's prayer in the draft notice of appeal reads:

> **"WHEREFORE** the Appellant prays that:
>
> (1) The present appeal be allowed with costs.
>
> (2) The judgment of the High Court be set aside and the matter be remitted to the High Court for a hearing on the merits before a different judge."

It is evident from this prayer that the applicant seeks to have the order striking matter number HCH 1677/26 off the urgent roll nullified and the case remitted to the High Court for a hearing on the merits. However, the request for a hearing on the merits upon remittal does not align with the interlocutory order that is the subject of the intended appeal.

With respect to the first ground of appeal, that I erred in striking the application off the urgent roll without a hearing, the logical consequence, if it were to succeed, would be for the Supreme Court to set aside my determination on urgency and remit the matter for reconsideration of urgency in compliance with the rules. If the applicant truly believes the matter was wrongly struck off without a hearing, the relief he should be seeking is a rehearing on urgency, not a remittal for determination on the merits.

The request for a hearing on the merits on remittal is, in substance, identical to the order I already gave when I struck the matter off the urgent roll. Rule 60(19) of the High Court Rules provides that where an application is struck off for lack of urgency, it is automatically transferred to the ordinary roll. My order therefore already had the effect of placing the matter on the ordinary roll, where it will be dealt with on the merits in due course. Once a matter is referred to the ordinary roll, the judge allocated to it will not revisit urgency, as that issue does not arise in ordinary court applications.

Since the applicant intends to go to the Supreme Court to seek precisely the same relief that I granted when I struck the matter off the roll of urgent matters, it is clear that the intended appeal lacks merit. There is therefore no basis for me to grant leave to appeal. The

applicant should simply proceed to prosecute his application for an interdict in HCH 1677/26 on the ordinary roll, where the merits will be ventilated.

The second ground of appeal is framed as an error on my part in concluding that the appellant had not been defamed in circumstances where the matter had not been heard on the merits. My discussion of this ground of appeal above shows that I never stated in my order that the applicant was not defamed. I did not go into the merits of the application for an interdict. What I did was strike the matter off the urgent roll so that it could proceed in the ordinary course and be heard on the merits. That procedural outcome is, in fact, the very relief the applicant now intends to go and seek in the Supreme Court. There is therefore no merit in the request for a remittal of the matter to be heard on the merits.

The third ground of appeal is that I erred in failing to find that the interim interdict would have been automatically discharged if the applicant had not filed an action claim within 30 days of the order. I could not have made this finding because I did not go into the merits of the application at all. I struck the matter off the urgent roll because the relief sought was not properly predicated on a final relief to be pursued on the return date, and because the relief requested was final in substance rather than interim. My determination was confined strictly to urgency. The applicant's contention that I should have pronounced on the automatic discharge of the interim relief if the claim for damages was not filed within 30 days is misplaced, since I never ventured into the merits of the case. By striking the matter off the urgent roll, the effect of it was to refer the matter to the ordinary roll where it would be heard on the merits in due course. There is therefore no basis for granting leave to appeal to the Supreme Court, since the applicant intends to seek precisely the same relief already afforded by the striking off. No purpose will be served by approaching the Supreme Court to obtain relief that has already been granted.

Disposition

In light of the foregoing analysis, I am satisfied that none of the proposed grounds of appeal discloses any prospects of success. The applicant's prayer to the Supreme Court for remittal of the matter under HCH 1677/26 to the High Court for hearing on the merits is already the automatic consequence of the order that I gave striking off the matter from the urgent roll. The intended appeal is therefore without merit and unnecessary.

On the issue of costs, I am mindful that having dismissed the application for leave to appeal, the ordinary position is that costs should follow the cause, meaning they would be

awarded to the respondent. However, in the present case I am not inclined to make such an award. The respondent did very little to meaningfully engage with the grounds of appeal raised by the applicant, and the submissions advanced by his counsel were of very little assistance to the court. Counsel argued points *in limine* that were wholly irrelevant to the present application, and persisted with them despite guidance from the court that they pertained to HCH 1677/26 rather than the present matter. When it came to addressing the actual grounds of appeal, counsel offered no substantive argument beyond repeating that I was correct in striking the matter off the urgent roll. In these circumstances, it would not be fair or just to burden the applicant with an order of costs in favour of the respondent, who contributed little to the resolution of the matter. The respondent cannot have the benefit of costs without having properly engaged with the issues.

Accordingly, the application for leave to appeal is dismissed with no order as to costs.

MUREMBA J:……

Dube, Manikai & Hwacha Legal Practitioners, applicant's legal practitioners
Mkuhlani Chiperesa Legal Practioners, respondent's legal practitioners

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